Energy Watchdog vs Uttrakhand Electricity Regulatory ... on 12 July, 2016

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COURT-I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

APPEAL NO. 51 OF 2016 &
IA NOs. 136, 178 & 363 OF 2016

Dated: 12th July, 2016

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. I.J. Kapoor, Technical Member

In the matter of :

Energy Watchdog .... Appellant (s)

Versus

Uttrakhand Electricity Regulatory Commission & Ors. ....Respondent(s)

Counsel for the Appellant(s) : Mr. Anil Kumar (Rep.)

Counsel for the Respondent(s) : Mr. Buddy A. Ranganadhan
Mr. Raghu Vamsy for R.1

Mr. Sanjay Sen, Sr. Adv.
Mr. Hemant Singh
Mr. Matrugupta Mishra for R-3

ORDER

In I.A. No.178 of 2016 (Application for recall of the order), the appellant has prayed that the Order, dated 03.02.2016, passed by this Tribunal granting liberty to file the appeal be recalled.

Having heard Mr. Anil Kumar appearing for the appellant and Mr. Sanjay Sen, learned counsel appearing for Respondent No.3, we are of the opinion that no case is made out for recall of Order, dated 03.02.2016.

Hence, the application is dismissed.

APPEAL NO. 51 OF 2016 In this appeal, there is a challenge to the provisional tariff order. We are informed that the State Commission has passed final tariff order on 07.06.2016. In view of this, Mr. Anil Kumar appearing for the appellant states that he wishes to withdraw the present appeal as he wants to challenge the final tariff order, if necessary.

In view of the above, the appeal is allowed to be withdrawn. Needless to say that the appellant may challenge the final tariff order, if it is so advised and the respondents can raise objection to the maintainability of the said appeal, if filed by the Appellant. We have expressed no opinion on the merits of the case.

The appeal is disposed of as withdrawn.

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  (I.J. Kapoor)                                (Justice Ranjana P. Desai)
Technical Member                                     Chairperson
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